

Not Just a Children's Game:

COVID-19 and Legal Concerns of Filipino Children in Conflict with the Law

Clyde Ben A. Gacayan

College of Law, West Visayas State University

The imposition of lockdowns, restricting the mobility of people across sectors in a given period of time to manage COVID-19 transmission, has been a popular policy choice among governments. The lockdown in the Philippines, referred to as “Enhanced Community Quarantine”, in fact, is among “the fiercest and longest-lasting”¹ since its implementation on March 16 2020 in the island of Luzon and later on all over the country. Since then, modifications and eventual easement of lockdowns were implemented but reclassification of some cities and regions back to stricter measures also have been a response to resurgence of localized community transmissions.

The unintended consequence of this particular policy approach has been recognized to impact access to food, basic services and income/livelihood sources mostly of the informal sector. The impact also extends to educational services and psychosocial health across different groups especially children. The United Nations through a policy brief on the impact of the COVID-19 crisis on children² asserts that while children have a lower risk of contracting COVID-19, “they risk being among its biggest victims,” with children being affected by “socio-economic impacts and, in some cases, by mitigation measures that may inadvertently do more harm than good.”

The UN policy brief further identifies several impacts of extended lockdown specifically on children to include (a) disruption of schooling and risks of dropping out, which has lifelong learning impacts; (b) threats to children's survival and health with expected increase in malnutrition and rise in mental health issues; (c) heightened risk of children witnessing or suffering violence and abuse inside their homes; (d) exposure to inappropriate online content and online abuse and exploitation; and (e) risk of getting arrested, detained or being subjected to physical and humiliating punishment as a result of strict quarantine protocols. This short article discusses the impact of quarantine measures and lockdown controls on the legal concerns of Filipino Children in Conflict with the law and the related concerns and challenges that face the implementation of RA 9344 or the Juvenile Justice and Welfare Act of 2006.

¹ The Economist. 2020. “Four months and counting: The Philippines’ fierce lockdown drags on, despite uncertain benefits”. *Economist Online*. July 11. Accessed June 01, 2021 from <https://www.economist.com/asia/2020/07/11/the-philippines-fierce-lockdown-drags-on-despiteuncertain-benefits>

² United Nations. Policy Brief: The Impact of COVID-19 on Children. 15 April 2020. Accessed June 01, from https://www.un.org/sites/un2.un.org/files/policy_brief_on_covid_impact_on_children_16_april_2020.pdf

Children's rights and the pandemic

While children are not visibly seen as the most affected population by the pandemic, anecdotal pieces of evidence suggest that the pandemic increased risks of the most vulnerable children who do not have access to social protection systems. The secondary and long-term devastating impact on children's rights, well-being and safety has a disproportionate effect on children from poor and vulnerable households for their entire lifetime³.

The most vulnerable children are less protected, including unaccompanied and separated refugee children, migrant and displaced children, street children, children affected by armed conflicts, children in judicial detention, children living with disabilities, and girls and children placed in institutions⁴. The combined effect of school closures with economic distress may additionally force children to drop out of school, compel children into child labor, become child soldiers, and into child marriages. Children without parental care are especially vulnerable to exploitation and other negative coping measures⁵.

On the other hand, children who are living with their parents, relatives or guards at home are not safe from the secondary impacts of the pandemic. Violence by caregivers, witnessing domestic violence against women, and domestic abuse are all brought about by the living in a confined space which involves the danger of different stressful situations brought about by the organizational, and financial structural challenges faced by parents to meet their children's needs⁶. This affects girls, women and those with disabilities greatly face higher rates of sexual and gender-based violence (SGBV), intimate partner and domestic violence, including sex for assistance and child marriage⁷.

UNICEF additionally reports that increased online activity that supports children's learning, socialization and play, also puts them at heightened risk. This includes online sexual exploitation, cyberbullying and increased online risk-taking behavior, which exposes them to risks of extortion, harassment and humiliation. Additionally, access to potentially harmful content as facilitated by increased online activity and inappropriate collection use and share of children's personal data are all brought about by limited child safeguarding practices online⁸.

³ Save the Children. (2020). COVID-19 impacts on African children. How to protect a generation at risk. Pan-African policy paper. Save the Children, East and Southern Africa Regional Office and Save the Children West and Central Africa Regional office.

⁴ Ibid. 2020.

⁵ United Nations. (2020). Policy Brief: The Impact of COVID-19 on children. Accessed June 01, 2021 from https://www.un.org/sites/un2.un.org/files/policy_brief_on_covid_impact_on_children_16_april_2020.pdf

⁶ Defense for Child International. (2020). The impact of COVID-19 on Children's Rights. Accessed June 01, 2021 from <https://defenceforchildren.org/wp-content/uploads/2020/04/DCI-Survey-on-COVID-11.pdf>

⁷ Save the Children. (2020). COVID-19 impacts on African children. How to protect a generation at risk. Pan-African policy paper. Save the Children, East and Southern Africa Regional Office and Save the Children West and Central Africa Regional Office.

⁸ UNICEF. (2020). COVID-19 and its implications for protecting children online. Accessed June 01, 2021 from https://www.end-violence.org/sites/default/files/paragraphs/download/COVID-%20and%20its%20implications%20for%20protecting%20children%20online_Final%20%28003%29.pdf

Concerns of Children in Conflict with Law

Restrictions on movement as well as increased police power of the state due to the pandemic have severely hampered the civil rights and freedoms of children. For instance, Defense for Children International (DCI) reports that the involvement of children in decision-making processes on matters that concern has been insufficient as a result of the negative impact of travel and movement limitation to work of human rights defenders and the prohibition of gatherings. Curfews and other precautionary health measures make it difficult for non-government workers to communicate with children in vulnerable situations as well as to cooperate with state authorities to advocate for more participation in civil society⁹. It cannot be discounted that the right of children to participate and have their voice in government decision-making in the context of health emergencies has diminished and are at risk.

To illustrate, DCI observed disruptions in the child justice system with the discontinuation of the courts, consequently leading to the absence of consideration of cases and no follow-up on investigations¹⁰. This concern also includes Children in Conflict with the Law (CICLs) whose legal aid services have been severely hampered because of quarantine and lockdown measures. Prolonged detention under protective custody is the main concern reported in Greece, as well as a lack of reporting incidents of violence and abuse, making violations of children's rights occur in total impunity.

For CICLs who are about to be reintegrated into their communities, the experience of Sierra Leon shows that because of the pandemic, it has become difficult to support family tracing, reunification and reintegration of children in conflict with the law. This is largely because of limited movements and the need for physical distancing¹¹.

Challenges in providing legal services to CICL during the time of the pandemic

In the Philippines, observations found in the developing literature and in country case studies mentioned earlier are not that different. While recorded cases of COVID- 19 in the age range 0-17 years old is at 6.0% and 2.27% deaths that are 0-18 years old¹², the socio economic and psychosocial effects on children are well documented. This holds true for children with disabilities, those administered under the juvenile justice and concerns arising from sexual exploitation.

⁹ Defense for Child International. (2020). The impact of COVID-19 on Children's Rights. Accessed June 01, 2021 from <https://defenceforchildren.org/wp-content/uploads/2020/04/DCI-Survey-on-COVID->

¹⁰ Ibid. 2020. Page 6.

¹¹ Ibid. 2020. Page 8.

¹² Philippines Covid-19 – Data and Case Tracker,” COVID-19 PH, Department of Health, accessed June 30, 2020 from <https://covid19ph.com/>

For children in conflict with the law (CICL), the consultation conducted by Save the Children in a juvenile facility last April 2020 provides some interesting insights as to how the pandemic has affected children under this category. Most CICLs reported that their families find it hard to visit the center due to restrictions on travel and the limited days of visit to Sundays. As an effect almost, all of the CICLs interviewed said that they have no idea how their families are doing since the start of the quarantine¹³.

Aside from this, more than half of those interviewed reported that while court hearings are suspended, they were able to receive guidance on the status of their cases from the resident social workers and assigned house parents¹⁴. Moreover, less than half of the participants said that they are not aware of the response of the government to the current situation and that for some, the efforts are not enough and that they are aware many people stopped working or have lost their jobs. On top of this, it was noted that psychosocial interventions are needed at the juvenile facility since there is no resident psychologist and that beforehand while volunteers have been extending help, this has been severely limited because of travel restrictions.

More than playing – prospects of teleconferencing and online legal counseling for children

It is important to highlight R.A. No. 9344 or the Juvenile Justice and Welfare Act of 2006. This law strengthened the fundamental structures for the effective operation of the Philippine Juvenile Justice and Welfare System in the country. Particularly, it describes and clarifies what happens before, during and after a CICL is handled by a particular duty-bearer– from initial contact to investigation and court process for the commitment of a child in a youth rehabilitation center, aftercare services, and reintegration into the society.

The law provides a reference to Article 40 of the United Nations Conventions on the Rights of Children in terms of judicial proceedings, to wit:

“Whenever appropriate and desirable, the State shall adopt measures for dealing with such children without resorting to judicial proceedings, providing that human rights and legal safeguards are fully respected. It shall ensure that children are dealt with in a manner appropriate to their well-being by providing for, among others, a variety of disposition measures such as care, guidance and supervision orders, counseling, probation, foster care, education and vocational training programs and other alternatives to institutional care.”

¹³ Save the Children Philippines. (April 2020). Children’s Consultation on COVID-19. Bahay Pag-As a and Bahay Sandigan, Malabon City. 08 April 2020.

¹⁴ Ibid. 2020.

Clearly, the pandemic and the movement restrictions that come with it have affected the rights of children in conflict with the law to receive appropriate guidance and supervision especially on the updates of their cases and psycho-social counseling. This concern is real for children deprived of liberty or those in any form of detention or placed in a public or private custodial setting, from which the child in conflict with the law is not permitted to leave at will by order of any judicial or administrative authority. R.A. No. 9344 implemented back in 2005 is far from perfect. In fact, the contribution of non-government organizations and legal clinics of law universities may contribute to the burgeoning needs of CICL to be provided with legal guidance and update on their cases in the language that children can understand.

By taking into account major psychosocial and economic concerns arising from lockdowns, children in conflict with the law and their legal needs are not insulated problems but are reflective of the need to improve and update the implementation of R.A. No. 9344. Teleconferencing and online legal counseling present an opportunity to address concerns for CICL. This however can only be done if both legal practitioners and child rights organizations come into agreement that the experiences of CICLs under lockdown *are more than a children's play* – and that the legal concerns of children can either make or break their hopes and dreams in the future.

After all, the legislative intent of Juvenile Justice and Welfare Act of 2006 is restorative justice. Thus, the challenges brought about by the pandemic are opportunities for the implementation of the law to be more cognizant not only of social and political realities but also that of the public health situation worldwide. ■

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